

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

CERTIFIT, INC., *Complainant*

v.

EVERGREEN SHIPPING AGENCY (AMERICA) CORP.,
AS AGENT FOR EVERGREEN LINE, EVERGREEN GROUP
D/B/A EVERGREEN LINE, *Respondent*.

DOCKET NO. 23-03

Served: May 29, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

SECOND ORDER TO CORRECT FILINGS

On December 8, 2023, the undersigned issued an Order directing Complainant to correct filings as well as its Motion for Confidential Treatment. One of the issues addressed in the Order was the Complainant's incorporation of the proposed findings of fact into the brief.

On January 8, 2024, Respondent submitted its opposition brief with the proposed findings of fact similarly incorporated, as well as a separate document containing its proposed findings of fact, and a separate document containing its responses to Complainant's proposed findings of fact. However, Respondent failed to cite to the relevant exhibits and page numbers in the proposed findings of fact, resulting in the need to cross reference between paragraphs of a declaration and the exhibits—but not page numbers—to which the declaration referenced. This failure to cite to specific bates numbers as instructed in the Scheduling Order creates confusion. The Scheduling Order states:

[Party's] Proposed Findings of Fact. This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited, as nearly as practicable, to a single factual proposition. Each factual proposition *shall be followed by an exact citation to evidence* that the party contends will support the proposed finding of fact; e.g., *a page number in the appendix*. The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.

Scheduling Order at 3 (emphasis added). Citing to a declaration that then cites only generally to evidence is insufficient to support the alleged findings of fact.

Similarly, in its opposition brief, Respondent cited to a witness declaration at RX1 to which it attached exhibits, and then cited to paragraphs in the declaration, rather than to the

exhibits and page numbers contained in the appendix. This creates confusion in determining what exhibit and what pages of the exhibit support the assertions made in the brief.

Both parties failed to either provide citations to exhibits that support their responses to the opposing party's proposed findings of fact or did not correctly cite to the exhibits which they contend support their own proposed facts. For example, Respondent's responses to the Complainant's proposed findings of fact should have included the bates number of the document in the appendix which Respondent asserts supports its proposed finding of fact:

[Party's] Responses to [Party's] Proposed Findings of Fact. This document shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. *Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.*

Scheduling Order at 3 (emphasis added). The parties are reminded that the evidence to which they cite as rebutting the proposed finding of fact may be their own exhibit, or an exhibit of the opposing party, but *must* cite to a specific exhibit and the relevant page numbers of that exhibit to support the rebutted fact.¹ Citing to a multi-page exhibit without indicating the page or pages that support the proposed finding of fact or rebuttal of a proposed finding of fact is insufficient.

In addition, Respondent's use of "*Id.*" in the declaration and the exhibits attached to the declaration is so extensive that it requires one to scroll back (sometimes, pages) to determine to what exhibit the "*Id.*" refers, and again, without reference to specific exhibits and bates numbers, more cross referencing is required. On the revised filings, Respondent must provide the exact citation to evidence for each proposed finding of fact or response to proposed finding of fact and may not use "*Id.*" or "*supra*" to refer back to a different proposed finding of fact.

Accordingly, it is hereby **ORDERED** that the parties submit corrected versions of their filings as follows: Evergreen must submit a Revised Opposition Brief, Revised Proposed Findings of Fact, and a Revised Response to Complainant's Proposed Findings of Fact that replaces citations to paragraphs in the witness's declaration with the precise supporting exhibit(s) and page number(s). The revised filings should be titled "Revised" to distinguish them from the original submissions and must be submitted as separate documents. The revised submission of the filings must have identical pagination to the initially filed versions and may not include any new text or exhibits (other than listing the filings as the "Revised" version and providing corrected citations). Accordingly, Respondent must leave the incorporated findings of fact in the revised brief so as not to affect the pagination. Respondent's revised filings are due no later than June 5, 2024.

Complainant must file Complainant's Revised Response to Respondent's Proposed Findings of Fact citing to specific evidence that rebuts Respondent's revised proposed findings

¹ Specifically, citing to "[Witness] Declaration RX1," or "[Witness] Declaration (citing other Appendix Documents), RX1-8" is insufficient to indicate what exact portion of a specific exhibit supports a proposed finding of fact or rebuttal of the opposing party's proposed finding of fact.

of fact no later than June 7, 2024. The reason for providing only two days after the receipt of Respondent's revision to its proposed findings of fact is that Complainant need only add the corrected citations to Respondent's enumerated proposed findings of fact; the more time-consuming task of adding its own citations to rebut Respondent's proposed findings of fact should be undertaken immediately. Complainant must cite to specific evidence that rebuts a proposed finding of fact if there is such evidence ("See Response to PFF 1" is not a sufficient citation to *evidence*). The pagination must remain the same as the originally filed version and may not include any new text or exhibits.

If a party did not deny a proposed finding of fact in the original version of its filings, it may not do so now. If a party adds new text or exhibits, its filings may be rejected.



Linda S. Harris Crovella
Administrative Law Judge